



CHAPTER lxvi.

An Act to incorporate the Burnham (Somerset) Pier Company and to transfer to the Company the powers of the Burnham (Somerset) Pier Order 1906 to authorise the Barry Railway Company to subscribe to the capital of the Company and for other purposes. [26th July 1907.] A.D. 1907.

WHEREAS by the Burnham (Somerset) Pier Order 1906 confirmed by the Pier and Harbour Order Confirmation (No. 3) Act 1906 (hereinafter referred to as "the Order of 1906") the Burnham Investment Syndicate Limited (hereinafter referred to as "the undertakers") were appointed the undertakers for carrying the Order of 1906 into execution and were authorised to construct maintain and regulate a pier and other works at Burnham in the county of Somerset :

And whereas it was provided by the Order of 1906 that the powers given by that Order should not be exercised unless within the period and on the terms and conditions therein mentioned the undertakers should transfer their undertaking to a company to be incorporated under the Companies Acts 1862 to 1900 for the purpose of carrying into effect the powers of the Order of 1906 and it is expedient that such provisions should be repealed and that in lieu thereof the provisions in this Act contained with respect to the transfer of the said undertaking should be sanctioned :

And whereas the persons in this Act named with others are willing to construct the pier and works authorised by the Order of 1906 and it is expedient that they should be incorporated into a company (hereinafter referred to as "the Company") and that the undertaking authorised by the Order of 1906 should be transferred to the Company :

A.D. 1907.

And whereas an agreement has been entered into between the undertakers and Thomas Cox on behalf of the Company for the sale to the Company of the said undertaking and has been duly ratified by the undertakers and it is expedient that the said agreement as set forth in the schedule to this Act should be confirmed and that the Company should be empowered to carry the same into effect:

And whereas under the powers of the Barry Railway (Steam Vessels) Act 1904 the Barry Railway Company are authorised to provide steam vessels in order to facilitate the transmission of traffic to and from Barry from and to ports and places on the south side of the Bristol Channel:

And whereas with the object of further facilitating the transmission of such traffic the Barry Railway Company are willing subject to the approval of Parliament to assist the Company in the manner hereinafter provided in finding the money required to carry out the works authorised by the Order of 1906 and it is expedient that they be authorised for that purpose to exercise the powers in that behalf and to raise additional capital as hereinafter provided:

And whereas it is expedient that the other provisions in this Act contained should be made:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Burnham (Somerset) Pier Act 1907.

Incorporation of general enactments.

2. The following enactments (so far as they are applicable for the purposes of and are not inconsistent with or expressly varied by this Act) are hereby incorporated with and shall be part of this Act (that is to say):—

The Companies Clauses Consolidation Act 1845:

Part I. (relating to cancellation and surrender of shares) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

3. In this Act—

A.D. 1907.

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction ;

Interpreta-
tion.

The expression “the Company” means the Company incorporated by this Act ;

The expression “the pier undertaking” means the undertaking and the works authorised by the Order of 1906 and includes the existing structure as defined by the said Order ;

The expression “the undertakers” means the undertakers for the purposes of the Order of 1906 ;

The expression “the Barry Company” means the Barry Railway Company.

4. Edward Baring Charles Emmanuel Pierson Harold Sisson Jacques Arthur George Pitts and all other persons who have already subscribed to or shall hereafter become proprietors in the undertaking of the Company and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purpose of acquiring the pier undertaking and executing the works authorised by the Order of 1906 and for other the purposes of the Order of 1906 and of this Act and for those purposes shall be and are hereby incorporated by the name of “The Burnham (Somerset) Pier Company” and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

Company in-
corporated.

5. The capital of the Company shall be thirty thousand pounds in six thousand shares of five pounds each.

Capital.

6. Subject as hereinafter mentioned the Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share is paid in respect thereof.

Issue of
shares.

7. One fifth of the amount of a share shall be the greatest amount of a call and three months at least shall be the interval between successive calls.

Calls.

A.D. 1907.

Receipt in
case of per-
sons not sui
juris.

8. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Power to
divide shares.

9. Subject to the provisions of this Act the Company with the authority of three fourths of the votes of the shareholders present in person or by proxy at a general meeting of the Company specially convened for the purpose may divide any shares in their capital into half shares of which one shall be called "preferred half share" and the other shall be called "deferred half share" but the Company shall not divide any share under the authority of this Act unless and until not less than sixty per centum upon such share has been paid up and upon every such division fifty per centum upon the entire share shall be carried to the credit of the deferred half share (being the whole amount payable thereon) and the residue to the credit of the preferred half share.

Dividends on
half shares.

10. The dividends which would be payable on any divided share if the same had continued an entire share shall be applied in payment of dividends on the two half shares in manner following (that is to say) First in payment of dividend after such rate not exceeding six per centum per annum as shall be determined once for all at a general meeting of the Company specially convened for the purpose on the amount for the time being paid up on the preferred half share and the remainder (if any) in payment of dividend on the deferred half share and the Company shall not pay any greater amount of dividend on the two half shares than would have been payable on the entire share if the same had not been divided.

Dividends on
preferred
half shares
to be paid
out of profits
of year only.

11. Each preferred half share shall be entitled out of the profits of each year to the dividend which may have been attached to it by the Company as aforesaid in priority to the deferred half share bearing the same number but if in any year ending the thirty-first day of December there shall not be profits available for the payment of the full amount of dividend on any preferred half share for that year no part of the deficiency shall be made good out of the profits of any subsequent year or out of any other funds of the Company.

Half shares
to be regis-
tered and
certificates
issued.

12. Forthwith after the creation of any half shares the same shall be registered by the directors and each half share shall bear the same number as the number of the entire share certificate in

respect of which it was issued and the directors shall issue certificates of the half shares accordingly and shall cause an entry to be made in the register of the entire shares of the conversion thereof but the directors shall not be bound to issue a certificate of any half share until the certificate of the existing entire share be delivered to them to be cancelled unless it be shown to their satisfaction that such certificate is destroyed or lost and on any certificate being so delivered up the directors shall cancel it. A.D. 1907.

13. The terms and conditions on which any preferred half share or deferred half share created under this Act is issued shall be stated on the certificate of each such half share. Terms of issue to be stated in certificate.

14. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the forfeiture of shares for non-payment of calls shall apply to all preferred half shares created under the authority of this Act and every such preferred half share shall for that purpose be considered an entire share distinct from the corresponding deferred half share and until any forfeited preferred half share shall be sold by the directors all dividends which would be payable thereon if the same had not been forfeited shall be applied in or towards payment of any expenses attending the declaration of forfeiture thereof and of the arrears of calls for the time being due thereon with interest. Forfeiture of preferred half shares.

15. No preferred half share created under the authority of this Act shall be cancelled or be surrendered to the Company. Preferred half shares not to be cancelled or surrendered.

16. The several half shares under this Act shall be half shares in the capital of the Company and every two half shares (whether preferred or deferred or one of each) held by the same person shall confer such right of voting at meetings of the Company and (subject to the provisions hereinbefore contained) shall confer and have all such other rights qualifications privileges liabilities and incidents as attach and are incident to an entire share. Half shares to be half shares in capital.

17. The Barry Company may with the authority of three fourths of the votes of their shareholders present in person or by proxy at a general meeting of the said Company specially convened for the purpose subscribe such moneys as they may think fit towards the pier undertaking not exceeding in the whole fifteen thousand pounds by taking shares in the Company or debenture stock of the Company or by lending moneys on mortgage of the pier undertaking or partly in one way and partly in another and the Barry Company may with the like authority contribute and apply in or towards payment of their said subscription any moneys Power to Barry Company to subscribe and apply funds for that purpose.

A.D. 1907. — which they are already authorised to raise and which may not be required by them for the purposes of their undertaking and also any moneys which they are by this Act authorised to raise and the Barry Company shall in respect of any shares in the Company to be held by them in virtue of such subscription have all the powers rights and privileges (except in regard to voting at general meetings which shall be as hereinafter provided) and be subject to all the obligations and liabilities of proprietors of shares in the Company Provided always that the Barry Company shall not sell dispose of or transfer any of the shares in the Company for which they may subscribe.

Appoint-
ment of
director by
Barry Com-
pany.

18. The Barry Company may when and so soon as they shall have subscribed to the pier undertaking in manner provided by this Act from time to time appoint a person whether individually a shareholder of the Company or not to be a director of the Company in addition to the directors to be appointed by the shareholders of the Company other than the Barry Company Every such appointment shall be made in writing under the seal of the Barry Company and shall be deposited with the secretary of the Company and may in like manner be revoked and renewed and every director so appointed shall enter upon office immediately upon his appointment and shall remain in office until his appointment be revoked as aforesaid or until he die or resign.

Power to
borrow.

19. The Company may borrow on mortgage of the pier undertaking any sum not exceeding in the whole one third part of the capital of the Company but no part thereof shall be borrowed until the whole capital of thirty thousand pounds is issued and accepted and one half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that the whole of such capital has been issued and accepted and that one half thereof has been paid up and that not less than one fifth part of the amount of each separate share in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such capital was issued bonâ fide and is held by the persons to whom the same was issued or their executors administrators successors or assigns and that such persons their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

20. The mortgagees of the pier undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole.

A.D. 1907.
For appointment of a receiver.

21. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Debenture stock.

22. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only to the purposes of the Company to which capital is properly applicable.

Application of moneys.

23. The first ordinary meeting of the Company shall be held within six months after the passing of this Act.

First ordinary meeting.

24. Subsequent ordinary meetings shall be held once in every year in the month of February or at such other stated period as shall be appointed for that purpose by an order of a general meeting.

Subsequent ordinary meetings.

25. The number of directors shall be five but the Company may vary the number provided that except as hereinbefore provided the number be not at any time more than seven or less than three.

Number of directors.

26. The qualification of a director shall be the possession in his own right of not less than fifty shares.

Qualification of directors.

27. The quorum of a meeting of directors shall be three.

Quorum.

28. Edward Baring Harold Sisson Jacques Charles Emmanuel Pierson Arthur George Pitts and one other person to be nominated by them or the majority of them and consenting to such

First directors.

A.D. 1907. — nomination shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act.

At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or nominated as aforesaid or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act or nominated as aforesaid being (if they continue qualified) eligible for re-election.

At the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845.

The several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

Confirming
agreement
for purchase
of pier under-
taking.

29. The agreement a copy whereof is set forth in the schedule to this Act is hereby confirmed and made binding upon the undertakers and the Company as fully and effectually as if the same had been entered into by the Company under their common seal after the passing of this Act and the undertakers and the Company are hereby respectively empowered to give effect to and carry out the same.

Receipt for
purchase
money.

30. The receipt in writing signed by three directors of the undertakers for the purchase money and interest (if any) to be paid to them by the Company under the scheduled agreement shall effectually discharge the Company from the sum so paid and from all debts and liabilities owing or incurred by the undertakers in respect of the pier undertaking which the undertakers shall with all practicable despatch pay and discharge and the Company shall not be concerned to see to the application of the purchase money or be answerable or accountable for the loss misapplication or non-application thereof Provided that if from any cause the Company are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the supreme court to an account to be opened in the matter of this Act and a

receipt shall be given to the Company by the cashier of the said bank for the money which shall have the same effect as the receipt signed by three directors of the undertakers. A.D. 1907.

31. On and as from the date of payment or satisfaction of the purchase money and consideration in manner provided by this Act and the scheduled agreement the pier undertaking and all the jurisdiction rights property powers privileges obligations and authorities appertaining thereto and vested in the undertakers under the Order of 1906 shall by virtue of this Act be transferred to and shall vest in the Company absolutely and may subject to the provisions of this Act be held exercised enjoyed and enforced by the Company accordingly as if the Order of 1906 had been passed with respect to the Company instead of with respect to the undertakers. Transfer of pier undertaking.

32. Upon the transfer to and vesting in the Company of the pier undertaking the Company shall hold harmless and keep indemnified the Burnham Urban District Council from and against all obligations and liabilities in respect of the existing structure to which the said council are subject under the agreement set forth in the Second Schedule to the Midland Railway Act 1905 and confirmed by that Act. For protection of Burnham Urban District Council.

33. Subject to the provisions of this Act nothing in this Act contained shall be held to prejudice or affect any right or cause of action or suit or any remedy which at the date of the sale of the pier undertaking the undertakers may have against any person and which any person may have against the undertakers but all such rights causes and remedies may be enforced or prosecuted by or against the undertakers as if this Act had not been passed and shall not be enforceable by or against the Company. Saving rights of action &c.

34. The following sections of the Order of 1906 are hereby repealed (namely):— Repeal of certain sections of Order of 1906.

Section 5 (Powers not to be exercised unless existing structure transferred to a company);

Section 6 (Re-transfer of existing structure if same is not transferred to a company);

Section 24 (Power to borrow);

Section 25 (Protection of lenders);

Section 26 (Appointment of receiver).

A.D. 1907.

Period for
completion
of works.

35. Section 21 (Powers to cease in certain events) of the Order of 1906 is hereby repealed and if the works authorised by the Order of 1906 are not completed within five years from the passing of this Act then on the expiration of that period the powers given by the Order of 1906 for executing those works or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Extending
period for
which lease
of rates may
be granted.

36. The period for which the Company may lease the rates and charges authorised to be taken by the Order of 1906 or any part thereof shall be such period not exceeding twenty-one years from the date of the lease as may be agreed upon between the Company and the lessee and section 35 (Power to lease rates) of the Order of 1906 shall be read and have effect accordingly.

Power to
Barry Com-
pany to
guarantee
revenues of
pier under-
taking.

37. The Barry Company may enter into and carry into effect agreements with the Company for the purpose of guaranteeing and may guarantee to the Company upon such terms and conditions as may be agreed upon that the revenues of the pier undertaking or the revenues arising under any branch or branches of the rates and charges leviable by the Company in respect of the pier undertaking shall for a period not exceeding thirty years from the completion of the works or such other date as may be agreed upon amount to such sum of money annually as may be agreed upon and defined in such guarantee and the Barry Company may charge the sums of money which shall become payable under such guarantee upon the receipts and property of the Barry Company and upon any moneys which they are by this Act authorised to subscribe towards the pier undertaking.

Working
agreements.

38. The Company on the one hand and the Barry Company on the other hand may from time to time enter into and carry into effect agreements and arrangements with reference to any of the purposes authorised by section 31 (Contracts with railway companies &c.) of the Order of 1906 and with respect to the working maintenance and management by the Barry Company of the works or any part thereof the employment of officers and servants and the fixing subject to the authorised maximum rates and the collecting and apportionment of the rates charges receipts and revenue taken by the Company or arising in respect of the pier undertaking.

Power to
Barry Com-
pany to raise
money by

39. The Barry Company may raise for the purposes of their subscription to the pier undertaking any capital not exceeding in nominal amount in the whole the sum of fifteen thousand pounds

by the issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively and the clauses and provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

A.D. 1907:
creation of
shares or
stock.

- The distribution of the capital of the Company into shares ;
- The transfer or transmission of shares ;
- The payment of subscriptions and the means of enforcing the payment of calls ;
- The forfeiture of shares for non-payment of calls ;
- The remedies of creditors of the Company against the shareholders ;
- The consolidation of the shares into stock ;
- The general meetings of the Company and the exercise of the right of voting by the shareholders ;
- The making of dividends ;
- The giving of notices ; and
- The provision to be made for affording access to the special Act by all parties interested :

And Part I. (relating to cancellation and surrender of shares) and Part II. (relating to additional capital) of the Companies Clauses Act 1863 shall (except where expressly varied by this Act or inconsistent with anything contained in any existing special Act relating to the Barry Company) extend and apply to the Barry Company and to the additional capital which they are by this Act authorised to raise.

40. The Barry Company shall not issue any share under the authority of this Act of less nominal value than ten pounds nor shall any share vest in the person or corporation accepting the same unless and until a sum not being less than one-fifth of the amount of such share shall have been paid in respect thereof.

Shares of
Barry Com-
pany not to
be issued un-
til one fifth
part paid up.

41. All moneys which the Barry Company may raise under the powers of this Act shall be applied for the purposes of the before-mentioned subscription only.

Application of
moneys raised
by Barry Com-
pany.

42. The Barry Company whilst shareholders of the Company may by writing under their common seal from time to time appoint some person (whether a shareholder of the Company or not) to attend any meeting of the Company and such person shall have all the privileges and powers attaching to a shareholder of the

Votes of
Barry Com-
pany at gene-
ral meetings.

A.D. 1907. — Company at such meetings and may vote thereat in respect of the capital of the Barry Company. Provided that such person shall not vote in respect of such capital in relation to the election of directors by the shareholders of the Company.

Power to
pay interest
out of capital
during con-
struction.

43. Notwithstanding anything in this Act or in any Act or Acts incorporated herewith the Company may out of any money by this Act authorised to be raised pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him from the respective times of such payments until the expiration of the time limited by this Act for the completion of the works or such less period as the directors may determine but subject always to the conditions hereinafter stated (that is to say):—

- (A) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the Company that two thirds at least of the share capital authorised by this Act in respect of which such interest may be paid has been actually issued and accepted and is held by shareholders who or whose executors administrators or assigns are legally liable for the same :
- (B) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear :
- (C) The aggregate amount to be so paid for interest shall not exceed one thousand pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one third of the amount paid for interest as aforesaid :
- (D) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares and in every certificate of shares :
- (E) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as hereinbefore set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845. A.D. 1907.

44. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily. Copy of Act to be registered.

There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

45. All the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1907. The SCHEDULE referred to in the foregoing Act.

AN AGREEMENT made the 10th day of December 1906 between the BURNHAM INVESTMENT SYNDICATE LIMITED whose registered office is situate at Burnham in the county of Somerset (hereinafter called "the vendors") of the one part and THOMAS COX of Killarney Herbert Road Burnham aforesaid estate agent on behalf of the Company below mentioned (which Company is hereinafter referred to as "the Company") of the other part.

WHEREAS the vendors are the undertakers for the purposes of the Burnham (Somerset) Pier Order 1906 confirmed by the Pier and Harbour Confirmation (No. 3) Act 1906 (which Order is hereinafter called "the said Order"):

And whereas an application is intended to be made in the next session of Parliament for the purposes (amongst others) of incorporating a company to be called the Burnham (Somerset) Pier Company (hereinafter referred to as "the Company") and of transferring to the Company the powers of the said Order:

And whereas the vendors have power under their memorandum of association to sell their undertaking for such consideration as they may think fit:

Now it is hereby mutually agreed as follows:—

1. The vendors shall sell and the Company shall purchase the undertaking authorised by the said Order which expression shall be deemed to include the existing structure as defined by the said Order and all the jurisdiction rights property powers privileges and authorities appertaining thereto and vested in the vendors as undertakers under the said Order.

2. The consideration for the sale and purchase hereby agreed to be made shall be the sum of £1,714 which shall be paid and satisfied as follows (viz.) As to the sum of £1,104 in cash and as to the sum of £610 by the allotment to the vendors or their nominees of 122 fully paid-up shares in the capital of the Company of £5 each.

3. The Company shall without investigation objection or requisition admit the validity of the said Order and the title of the vendors to the premises hereby agreed to be sold.

4. This agreement is conditional on the same being ratified by resolution of a general meeting of the Burnham Investment Syndicate Limited and on the passing of an Act of Parliament to give effect to the provisions thereof and if not so ratified within ten weeks from the date thereof or if an Act of Parliament confirming the same shall not have been obtained in the next ensuing session after the date hereof shall be null and void.

5. The transfer shall be completed and the consideration for the said sale and purchase paid and satisfied on the twenty-first day of December 1907 (or on such other date as may be agreed between the vendors and the Company) at the office in Victoria Street Burnham in the county of Somerset of Messrs. Jacques Clutton and Moore solicitors and thereupon the vendors and all other necessary parties (if any) shall at the expense of the Company execute and do all assurances and things for giving to the Company the full benefit of this agreement. A.D. 1907.

6. If from any cause whatsoever other than the wilful default of the vendors the purchase money shall not be paid before the date hereinbefore provided the Company shall pay interest on so much of the said purchase money as shall be paid in cash at the rate of five pounds per centum per annum from such date until payment.

7. The vendors shall pay satisfy and discharge all their debts and liabilities in connection with the said undertaking and shall indemnify the Company against all proceedings claims and demands on account thereof.

8. The Company shall bear and pay the costs and expenses of and incident to the preparation and execution of this agreement.

9. This agreement shall be scheduled to the Bill for the said Act and is made subject to such alterations as Parliament may think fit to make therein but if any material alteration is made therein it shall be competent to either party hereto to withdraw from the same.

In witness whereof the vendors have hereunto set their common seal and the said Thomas Cox has set his hand and seal the day and year first above written.

The common seal of the Burnham Investment
Syndicate Limited was hereunto affixed in the
presence of

C. E. RAINGER
HAROLD S. JACQUES } Directors.
F. A. HASTINGS Secretary.

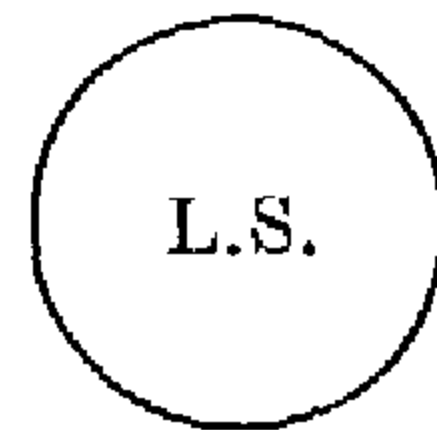


Signed sealed and delivered by the
before-mentioned Thomas Cox in the
presence of

J. W. F. JACQUES Solicitor
Burnham Somerset.

THOMAS COX.

L.S.



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